

#	Case Name	Tentative
		[“both” the claim of exemption and opposition “shall be received in evidence”).] Defendants / judgment creditors shall file a copy of the claim of exemption, along with any other documents served on defendants / judgment creditors by the levying officer [such as financial statements if applicable], at least five court days prior to the continued hearing date. (Code Civ. Proc., § 703.580, subd. (c) [court’s discretion to continue hearing for additional evidence].) Defendants / judgment creditors Angel Lupe Guzman and Arijet Corporation shall give notice to: (1) plaintiff / judgment debtor / claimant William Rogers and claimant Celestina M. ("Tina") Rogers; (2) counsel for plaintiff William Rogers, Robert D. Walters, 1440 N. Harbor Blvd., Suite 900, Fullerton, CA 92835; and (3) the levying officer, Orange County Sheriff's Dept., 909 N. Main Street, Suite 2, Santa Ana, CA 92701.
59.	Ceja v. Volkswagen Group of America, Inc. 2025-01479621	Defendants Volkswagen Group of America, Inc. and Audi South Coast’s motion for judgment on the pleadings is DENIED. (Code Civ. Proc. §438, subd. (c).) “A motion for judgment on the pleadings serves the function of a demurrer, challenging only defects on the face of the complaint.’ [Citation.] As with a demurrer, ‘[t]he grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice.’ [Citations.]” (<i>Eckler v. Neutrogena</i> (2015) 238 Cal.App.4th 433, 439; Code Civ. Proc., § 438, subd. (d); see <i>Hopp v. City of Los Angeles</i> (2010) 183 Cal.App.4th 713, 717 [“A motion for judgment on the pleadings is equivalent to a general demurrer, and the courts treat all properly pleaded material facts in the complaint as true”).] A trial court’s determination of a motion for judgment on the pleadings accepts as true the pleading’s factual allegations, and it gives them a liberal construction. (<i>Gerawan Farming, Inc. v. Lyons</i> (2000) 24 Cal.4th 468, 515-516.) <u>Cause of Action 5 – Negligent Repair</u> The first amended complaint (“FAC”) sufficiently alleges the ultimate facts to state a cause of action for negligent repair. (See FAC ¶¶ 74-77.) Defendants’ argument that this claim is barred by the economic loss rule is not persuasive. The duty to use ordinary care in performing repairs to a vehicle is independent of Audi South Coast’s contractual duty. The economic loss rule does not apply to bar negligence claims arising from deficient performance of a contract for services.

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		(See <i>North American Chemical Co. v. Superior Court</i> (1997) 59 Cal.App.4th 764, 777.) <u>Cause of Action 6 – Fraudulent Inducement – Concealment</u> Defendants argue that the Sixth Cause of Action is deficient because (1) it is not pleaded with particularity; (2) the economic loss rule bars tort remedies; and (3) there is no transactional relationship alleged sufficient to constitute a duty to disclose. None of these arguments is persuasive. “[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (<i>Boschma v. Home Loan Center, Inc.</i> (2011) 198 Cal.App.4th 230, 248; <i>Dhital v. Nissan North America</i> (2022) 84 Cal.App.5th 828, 843.) The “ ‘particularity requirement necessitates pleading <i>facts</i> which show how, when, where, to whom, and by what means the representations were tendered.’ ” (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 645.) This standard, however, “is harder to apply [] to a case of simple nondisclosure.” (<i>Alfaro v. Community Housing Improvement System & Planning Assn., Inc.</i> (2009) 171 Cal.App.4th 1356, 1384.) “One of the purposes of the specificity requirement is ‘notice to the defendant, to furnish the defendant with certain definite charges which can be intelligently met.’ ” (<i>Id.</i>) “Less specificity should be required of fraud claims ‘when “it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy,” [citation]; “[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party” ’ ” (<i>Id.</i>) <u>Specificity</u> VW argues Plaintiffs’ fraudulent concealment claims rely exclusively on conclusory and vague statements. However, Plaintiff has alleged that, prior to and at the time Plaintiff acquired the vehicle, VW had exclusive knowledge that there

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		was a potentially hazardous defect with its 3.0-liter engine and/or its related components, and it obtained such knowledge from pre-release testing data, early consumer complaints about the defect, dealership repair orders, testing conducted in response to complaints, and other internal sources of information possessed exclusively by VW and its agents. (See, e.g., FAC ¶84.) Despite having this exclusive knowledge, VW concealed the existence of this material defect from Plaintiff at the time of sale, repair, and thereafter. (See, e.g., FAC ¶86.) Plaintiff alleges VW concealed the defects by either refusing to acknowledge the defect’s existence, or by performing superficial and ineffectual repairs. (<i>Id.</i>) Plaintiffs’ allegations align with the allegations considered, and found sufficiently pleaded, in <i>Dhital</i>, where the plaintiffs alleged Nissan sold vehicles with a defective CVT transmission that caused a potential safety hazard, which it had exclusive knowledge of, yet which it intentionally concealed from consumers in order to induce consumers to purchase vehicles equipped with the defective transmission. (<i>Dhital</i> 84 Cal.App.5th at 833-834.) <u>Economic Loss Rule</u> “[C]laims for fraudulent inducement by concealment [are] not subject to demurrer on the ground it is barred by the economic loss rule.” (<i>Dhital</i>, supra., 84 Cal.App.5th at 840.) Examining <i>Robinson Helicopter Co., Inc. v. Dana Corp.</i> (2004) 34 Cal.4th 979, the <i>Dhital</i> court recognized <i>Robinson</i> crafted an exception to the economic loss rule for contracts that were fraudulently induced. (<i>Dhital</i>, supra., 84 Cal.App.5th at 838.) While “<i>Robinson</i> left undecided whether concealment-based claims are barred by the economic loss rule,” “[w]hat follows from its analysis ... is that concealment-based claims for fraudulent inducement are not barred by the economic loss rule. The reasoning in <i>Robinson</i> affirmatively places fraudulent inducement by concealment outside the coverage of the economic loss rule. We now hold that the economic loss rule does not cover such claims.” (<i>Dhital</i>, supra., 85 Cal.App.5th at 840-841; see also <i>County of Santa Clara v. Atlantic Richfield Co.</i> (2006) 137 Cal.App.4th 292, 331 [alleged misrepresentations refuting and concealing evidence that low levels of lead exposure could be hazardous were sufficient to support a fraud cause of action, notwithstanding the economic loss rule]; see also <i>Harris v. Atlantic Richfield Co.</i> (1993) 14 Cal.App.4th 70, 78 [knowing nondisclosure during the contract

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		formation, or the performance of the contract, allows the injured party to recover in both contract and tort].) The purpose of the fraud exception is to protect the public interest of holding those accountable for committing fraud, deterring such conduct, promoting a business climate free from fraud, and not allowing the economic loss rule to serve as a license to cheat or defraud others. (<i>Robinson Helicopter</i>, supra., 34 Cal.4th at 992; see <i>Munoz v. Patel</i> (2022) 81 Cal.App.5th 761, 779 [in pursuing a valid fraud action, a plaintiff advances the public interest in punishing intentional misrepresentations and in deterring such misrepresentations in the future].) Defendants’ reliance on <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, is misplaced, as <i>Rattagan</i> expressly disclaims that the opinion addresses the issues of “claims of fraudulent inducement by concealment claims as well as the potential interplay with remedies available under the Song-Beverly Consumer Warranty Act” (See <i>Id.</i> at 13, fn. 12.) <u>Transactional Relationship</u> VW argues there is no duty to disclose because no direct transaction between it and Plaintiff is alleged. Plaintiff, however, alleges that she entered into a warranty contract with VW. (See, e.g., FAC ¶¶ 7-8; See also <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844 [rejecting Nissan’s similar arguments because plaintiffs alleged the manufacturer backed the car with an express warranty]; see <i>Kiluk v. Mercedes-Benz USA, LLC</i> (2019) 43 Cal.App.5th 334, 337, 343 [manufacturer stepped into the role of the distributor and retail seller by issuing an express warranty]; see <i>Fortune v. Nissan North America, Inc.</i> (N.D. Cal., Feb. 16, 2023, No. 22-CV-05247-KAW) 2023 WL 2065043, at *5 [transactional relationship where manufacturer issued a warranty].) In any event, “it is clear in California that an action for deceit does not require contractual privity.” (<i>Shapiro v. Sutherland</i> (1998) 64 Cal.App.4th 1534, 1549.) This is true because “a defendant cannot escape liability if he or she makes a representation to one person while intending or having reason to expect that it will be repeated to and acted upon by the plaintiff.” (<i>Id.</i> at 1548.) Here, Plaintiff alleges VW was well-aware of a serious, and potentially hazardous, underlying defect with its 3.0-liter engine and/or its related components, yet it actively concealed

[illegible]